

1	2020-01168103 AFC Cal, LLC vs. Pascual	Plaintiff AFC Cal, LLC Motion to Amend Judgment Continued to January 25, 2024
2	2023-01335355 Ascendant International, Inc. vs. Martinez	Lucy Scott, Ascendant International, Inc. Petition to Confirm Arbitration Award Petitioners Ascendant International, Inc., dba RE/MAX LUXURY PROPERTIES, and Lucy Liu Scott (collectively, "Petitioners") seek an order confirming the arbitration award issued on 6/15/2023 by Irene M. Guimera in the amount of \$64,102.67, which includes arbitration fees in the amount of \$1,475 and attorneys' fees and costs in the amount of \$29,929.51 in favor of Petitioners and against Respondents Adrian Martinez ("Martinez") and Am Sea, LLC ("Am Sea") (collectively, "Respondents"). On 10/26/2023, the hearing on this petition was continued to allow Petitioners to file a proof of service showing the petition and notice of continuance were properly served on Respondents. As the Court previously noted, Petitioners have not shown that Respondents agreed to allow WHGC, PLC to accept service on Respondents' behalf, or that they agreed to electronic service. To the extent Petitioners contend the petition and notice of continuance was properly served on Martinez on November 6, 2023, Petitioners' proof of service did not show the documents were properly served in accordance with Code of Civil Procedure section 415.20, subdivision (a). (ROA No. 27.) It is unclear whether service at the 135 South State College Boulevard address is proper when another representative at the location informed Petitioners' process server that Respondents did not have a physical address at the location, that Respondents were just virtual clients, and that the representative was not authorized to accept service of process. (See, ROA No. 29, Bohm Decl., ¶ 7.) Petitioners offer no explanation as to what changed and why service at that address would be proper. It is also unclear whether the virtual office is for Martinez or Am Sea. In addition, Petitioner filed the 11/13/2023 Application and Order for Publication of Summons <i>after</i> the purported personal service on Martinez and the Application requested an order allowing service by publication on "Adrian Martinez, Am Sea, LLC." (ROA No. 29, Page 1, Section 2.) It appears Petitioners concede service has not been effectuated on either respondent. Petitioners have not shown the petition and notice of continuance were properly served on Respondents in accordance with CCP sections 1290.2 and 1290.4. The hearing on this petition is continued 2/8/2024 at 2:00 PM in Department C12. No later than five court days before the continued hearing date, Petitioners shall file a proof of service showing the petition and notice of continuance were properly served on Respondents. Petitioners shall give notice in accordance with Code of Civil Procedure section 1290.4.

3	2023-01308739 City of La Habra vs. Sanchez	City Of La Habra Petition for Order to Abate Substandard Building and Appointment of Receiver ***OFF CALENDAR***
4	2019-01059637 City of Westminster vs. Mai	Eric P Beatty 1. Motion for Order Approving Receiver's Plan 2. Status Conference No tentative ruling. Receiver should be prepared to explain the breakdown of the estimated costs, which includes tasks that have already been completed and presumably would have been paid through the proceeds of the prior four certificates. (See ROA 243 [Rehabilitation Plan and Cost Estimate at pp. 8-9, § V].) Petitioner shall be prepared to explain its position on the alleged \$250,000 in additional costs that the City is imposing upon the rehabilitation, "which are, in the opinion of the Receiver, of little or no utility," and whether these "requirements" can be waived. (See ROA 248 [Mot. at pp. 3-4].) Further, while the Court is inclined to grant the Receiver's Motion for Order Approving Rehabilitation Plan and Cost Estimate and Authorizing the Receiver to Issue a Fifth Certificate of Indebtedness, the Court is also inclined to continue the hearing, per Respondents' request for additional time to "complete an investigation of the rehabilitation plan" and "potentially develop an alternative plan for remediation." The Court is interested in hearing the parties' views on the alternative of simply creating a vacant lot given the seemingly unreasonable position taken by the City regarding a more neighborhood-friendly rehabilitation plan.
5	2020-01162336 CSE Safeguard Insurance Company vs. Dinh Mai	Status Conference See detailed statement re #4